

PEGASUS



*A COMPREHENSIVE ANALYSIS OF THE WORLD'S MOST
NOTORIOUS SPYWARE*

BY



An Open Research Analysis of Pegasus Spyware

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1. Executive Summary

In the shadowy corridors of cybersecurity, few names evoke as much fear and fascination as Pegasus. This isn't just another piece of malicious software—it's a digital weapon so sophisticated that it can turn your smartphone into a secret agent working against you, all without you ever knowing it existed.

This is not science fiction—it is the reality of Pegasus spyware in 2025. It was created by the Israeli company NSO Group and is the epitome of commercial surveillance technology. Governments all over the world have used Pegasus to spy on journalists, human rights activists, political dissidents, and even their own citizens. The software has been at the center of international scandals, billion-dollar lawsuits, and heated debates about privacy, security, and human rights in the digital age. Imagine walking down a busy street with your phone safely in your pocket, and you have no idea that someone thousands of miles away is reading your private messages, listening to your conversations, watching through your camera, and following your every move. Technology is only one aspect of Pegasus's plot; other themes include authority, monitoring, and the fine line separating oppression from security. Million-dollar companies, clandestine government organizations, courageous journalists, and regular citizens caught in the crossfire of digital espionage are all featured in this story.

Key Findings at a Glance:

- Pegasus can infect both iPhone and Android devices without any user interaction
- The software has been used in over 45 countries worldwide
- NSO Group faces legal challenges exceeding \$2 billion in potential damages
- Recent developments in 2024-2025 have significantly impacted the company's operations
- The spyware represents a fundamental shift in how governments conduct surveillance

2. The Birth of a Digital Monster

The Genesis Story

The year was 2010, and the world was a different place. Facebook had just 500 million users, the iPad was brand new, and most people still thought of their phones as devices for calling and texting. In a small office in Herzliya, Israel—a coastal city known for its high-tech companies—three former Israeli military intelligence officers had an ambitious vision.

The goal of Shalev Hulio, Omri Lavie, and Niv Carmi was not to develop the most contentious spyware in history. In the digital age, they aimed to establish a business that would assist governments in combating serious crime and terrorism. Using the initial letters of their names, they renamed their business NSO. Their main product, Pegasus, was later named after the legendary winged horse that could fly wherever.

There was no better time to do it. Smartphones were becoming more and more common, and thieves and terrorists were utilizing them to plan their actions. In a world where social media and encrypted messaging apps were the primary means of communication, traditional wiretapping techniques were becoming outdated. Global law enforcement organizations were finding it difficult to keep up.

The Israeli Connection

Israel's dominance in cybersecurity isn't accidental. The country's mandatory military service, combined with its constant security threats, has created a unique ecosystem where young people develop cutting-edge cyber skills in elite military units like Unit 8200—Israel's equivalent of the NSA. When these soldiers complete their service, many of them flow into the private sector, bringing with them knowledge and techniques that were once the exclusive domain of intelligence agencies.

NSO's founders were products of this system. They understood both the technical aspects of mobile device security and the operational needs of intelligence agencies. This combination of skills would prove to be devastatingly effective.

The Early Days

In its early years, NSO operated in relative obscurity. The company's first clients were primarily Israeli security agencies, but word quickly spread through the tight-knit international intelligence community. Here was a company that could do what many thought impossible—remotely access and control smartphones without their owners ever knowing.

Compared to later iterations, the early Pegasus were comparatively rudimentary. They necessitated user participation of some kind, either downloading a dubious attachment or clicking on a malicious link. However, even these early iterations were extremely advanced, with the ability to retrieve location information, call logs, and text messages.

NSO's customer service philosophy set them apart from other cybersecurity firms. They did more than simply sell software and disappear. Rather, they provided what they referred to as "managed services"—basically, they would run the spyware for their customers. This made it possible for government organizations with little technical know-how to use sophisticated surveillance tools.

The First Controversy

NSO's first major brush with controversy came in 2016 when researchers at Citizen Lab, a cybersecurity research group at the University of Toronto, discovered Pegasus being used to target a human rights activist in the United Arab Emirates. Ahmed Mansoor, a prominent Emirati activist, had received suspicious text messages containing links that, if clicked, would have infected his iPhone with Pegasus.

This finding was noteworthy for a number of reasons. First, it demonstrated that Pegasus was being used against civil society activists in addition to terrorists and criminals. Second, it demonstrated the program's sophistication; the researchers discovered that Pegasus was gaining access to devices by exploiting undiscovered iOS flaws.

The occasion increased global awareness of NSO among human rights organizations and cybersecurity researchers. It was a prelude to the far bigger conflict that would ensue.

Evolution and Innovation

As smartphones became more secure, NSO had to constantly innovate to stay ahead of the security measures implemented by Apple, Google, and other technology companies. Each iOS and Android update potentially closed vulnerabilities that Pegasus relied on, forcing NSO's engineers to find new ways to breach device security.

At NSO, this game of cat and mouse sped up innovation. The business employed some of the top security researchers and reverse engineers in the world and made significant investments in R&D. They created methods that were years ahead of what scholars believed was feasible.

By 2018, NSO accomplished a noteworthy feat: they created "zero-click" exploits. These assaults had the ability to infect a target's phone without the victim having to do anything. No attachments to download, no dubious links to click. Just receiving a message could infect the phone, and it might be instantly erased before the user even notices it.

3. NSO Group: The Company Behind the Curtain

Corporate Structure and Ownership

NSO Group operates like a Russian nesting doll—layers within layers, designed to obscure ownership and accountability. The company's corporate structure has been deliberately complex, involving multiple shell companies, offshore entities, and frequent reorganizations that make it difficult to track money flows and ultimate responsibility.

NSO began as a modest Israeli firm and has had several ownership transitions. Francisco Partners, a private equity group, paid over \$130 million to acquire the business in 2014. This was only the start of a string of

financial dealings that would see the business go through several ownership changes, each of which added a new level of complexity.

A London-based private equity firm called Novalpina Capital purchased NSO in 2019 for an estimated \$1 billion. But when it was revealed that some of Novalpina's finance apparently came from sources connected to Russian billionaires, this deal turned into a contentious one. Regulatory scrutiny and legal problems ultimately caused the acquisition to collapse.

Throughout these ownership changes, the three founders—Niv Carmi, Omri Lavie, and Shalev Hulio—maintained significant influence over the company's operations. Hulio, in particular, emerged as the public face of NSO, frequently giving interviews and defending the company's practices.

The Business Model

In the technology sector, NSO's business strategy is distinct. NSO functions more like a service provider than traditional software companies, which sell licenses and allow users to run the product on their own. They manage Pegasus for their customers in addition to selling it.

For NSO, this "turnkey" strategy offers a number of benefits. In the first place, it makes sure that users cannot reverse-engineer the software and create their own features. Secondly, it enables NSO to keep strict control over the software's usage. Third, instead of generating one-time license payments, it generates continuous revenue streams.

According to reports, Pegasus' price structure is intricate and fluctuates greatly based on the client and the deployment's size. Depending on the number of targets and the length of the contract, a typical Pegasus deployment could cost anywhere from \$8 million to \$55 million, according to court filings and leaked documents.

Customers pay for the entire operation, not just the software. This entails finding and obtaining fresh zero-day exploits, creating unique attack vectors for particular targets, keeping up with the infrastructure required to run the spyware, and offering continuing technical assistance.

Key Personnel and Leadership

The company's roots in Israel's military-intelligence complex are reflected in the leadership group at NSO. Numerous senior executives have served in high-level military units or intelligence organizations in the past, which gives them both technical know-how and insight into the operational requirements of their clients.

The company's CEO and co-founder, Shalev Hulio, has emerged as NSO's most well-known spokesperson. Hulio, a former member of Unit 8200, has worked to portray NSO as a responsible business that supports

governments in their efforts to combat severe crime and terrorism. He regularly highlights the company's ethical standards in interviews and asserts that NSO has stringent safeguards to stop software abuse.

However, detractors contend that Hulia frequently contradicts the proof of Pegasus's actual use in his public remarks. One of the main points of criticism directed at NSO is the discrepancy between their public statements and the actual Pegasus deployments.

The technical leadership of the organization is equally excellent. Some of the top security researchers in the world have been hired by NSO, which provides competitive pay and working conditions compared to large IT firms. Because of this, they have been able to keep their technological advantage while Apple, Google, and other businesses have made significant investments to strengthen their security.

Corporate Culture and Ethics

To comprehend how Pegasus came to be used in ways that many view as unethical, one must have a solid understanding of NSO's corporate culture. The business operates with what could be referred to as a "siege mentality"—they consider themselves as defenders of security and democracy, surrounded by detractors who are unaware of the dangers they are assisting in thwarting. This kind of thinking has influenced how NSO handles moral dilemmas. Representatives of the corporation frequently respond to allegations that Pegasus has been used to spy on journalists and activists by highlighting the software's legal applications and the significance of combating severe crime and terrorism.

NSO has set up what they refer to as a "Ethics Committee" and says they have strict procedures in place for screening clients and keeping an eye on how their software is being used. However, multiple studies that have revealed rampant misuse of Pegasus have questioned the efficacy of these protections. Employees of the company, many of whom are highly qualified engineers and researchers, appear to sincerely think that they are contributing to public safety. This leads to a complicated situation whereby well-meaning workers may be employed by a business whose goods are utilized in ways that are against human rights.

Financial Performance and Struggles

NSO was a very successful business for a large portion of its life. There was a high demand for advanced surveillance capabilities, and NSO was able to charge more because of their technological advantage. According to reports, the corporation was worth more than \$1 billion at its height.

But in recent years, the company's financial status has drastically worsened. It has been challenging for NSO to conduct regular business due to a combination of legal issues, regulatory penalties, and bad press. According to reports, a number of significant clients have canceled their contracts, and the business has had trouble bringing in new business.

By adding NSO to its Entity List in 2021, the US essentially blacklisted the company and made it more difficult for US businesses to do business with them. Since many of the resources and services that NSO relied on were supplied by American businesses, this had immediate and serious repercussions for their operations.

NSO has been forced to restructure its operations and lay off personnel due to financial hardship. Unpaid salaries and trouble meeting financial obligations have been reported. The once-unstoppable enterprise is now struggling to stay in business.

Attempts at Legitimacy

Throughout its existence, NSO has made various attempts to position itself as a legitimate technology company rather than a purveyor of spyware. The company has hired prominent public relations firms, engaged with human rights organizations, and even attempted to get independent audits of their practices.

There has not been much success with these attempts. The basic conflict arises from the fact that NSO's business strategy relies on secrecy and taking advantage of security flaws, which are fundamentally incompatible with accountability and transparency.

NSO has also made an effort to place the blame for software abuse on its customers. Pegasus is merely a tool, according to company spokespeople, and NSO is not liable for how governments decide to utilize it. Courts and human rights organizations have largely rejected this reasoning, arguing that NSOs have an obligation to make sure their products are not used in ways that violate human rights.

4. Technical Marvel or Digital Nightmare?

The Architecture of Invasion

You must comprehend what Pegasus can do to your phone in order to comprehend why it is so dreaded. Think of your smartphone as a fortress with high walls, sturdy gates, and several security levels to keep trespassers out. Imagine now that someone has managed to get past all of these barriers and done so without leaving any evidence of their existence. That's Pegasus.

Pegasus not only has access to your data when it successfully infects a device, but it also takes total control of your phone. Security experts refer to the compromised device as a "remote access trojan" (RAT), which effectively transforms your personal gadget into a spy operating against you.

It is astounding how sophisticated the technology must be to provide this degree of access. Numerous security features built into contemporary cellphones, especially iPhones, are intended to thwart this kind of attack. These consist of:

Hardware-level security: Modern phones have dedicated security chips that store encryption keys and perform cryptographic operations in isolated environments.

Operating system security: Both iOS and Android implement sophisticated permission systems, sandboxing, and code signing requirements designed to prevent malicious software from running.

Application-level security: Individual apps are isolated from each other and from the underlying operating system through carefully designed APIs and permission systems.

Pegasus manages to bypass all of these protections through a combination of previously unknown vulnerabilities (called "zero-day exploits") and sophisticated programming techniques.

The Infection Process

The most advanced versions of Pegasus use what's called "zero-click" exploitation. This means that the target doesn't need to take any action for their phone to become infected—they don't need to click on a link, download an app, or even see a suspicious message.

Here's how a typical zero-click attack might work:

1. **Initial Contact:** The target receives what appears to be a normal message through WhatsApp, iMessage, or another messaging platform. This message might contain multimedia content like an image or video.
2. **Exploitation:** When the messaging app attempts to process this content, it triggers a vulnerability in the app or the underlying operating system. This vulnerability allows the attacker to execute their own code on the device.
3. **Privilege Escalation:** The initial exploit usually provides only limited access to the device. Pegasus uses additional exploits to gain higher levels of access, eventually achieving what's called "root" or "administrator" privileges.
4. **Persistence:** Once Pegasus has full control of the device, it installs itself in a way that ensures it will continue to operate even if the phone is restarted or updated.
5. **Stealth:** The spyware goes to great lengths to hide its presence, deleting the original message that delivered it and operating in ways that are designed to avoid detection.

The entire process can happen in seconds, and the target may never realize that anything unusual has occurred.

Capabilities That Would Make James Bond Jealous

Once installed, Pegasus transforms a smartphone into the ultimate surveillance device. The capabilities it provides are comprehensive and deeply invasive:

Communication Monitoring:

- Read all text messages, including those in encrypted messaging apps like WhatsApp and Signal
- Monitor phone calls and VoIP communications
- Access email accounts and social media activities
- Track messaging app communications across multiple platforms

Location Surveillance:

- Continuous GPS tracking with historical location data
- Access to location data even when location services are disabled
- Tracking through cellular tower triangulation and Wi-Fi network analysis

Audio and Visual Surveillance:

- Activate the microphone to record conversations remotely
- Turn on the camera to take photos or record videos without the user's knowledge
- Access stored photos, videos, and audio files

Data Extraction:

- Download contact lists, calendar entries, and notes
- Access browser history and saved passwords
- Extract files and documents stored on the device
- Monitor app usage and behavior patterns

Network Analysis:

- Monitor Wi-Fi networks the device connects to
- Track internet usage and browsing patterns
- Access saved Wi-Fi passwords and network configurations

What makes these capabilities particularly dangerous is that they operate completely in the background. The phone continues to function normally from the user's perspective, while secretly transmitting intimate details of their life to remote servers.

The Zero-Day Economy

Pegasus's efficacy hinges on its capacity to take advantage of hitherto undiscovered flaws in smartphone apps and operating systems. Because the software manufacturers are unaware of these "zero-day" vulnerabilities and have not created updates to address them, they are extremely useful.

NSO Group works in what security experts refer to as the "zero-day market"—a murky marketplace where undiscovered vulnerabilities are purchased and sold for huge profits. The value of a single zero-day attack that targets the most recent iPhone might reach \$1 million or higher.

Perverse incentives are produced in the cybersecurity ecosystem as a result. Security researchers might make enormous earnings by selling vulnerabilities to organizations like NSO rather than reporting them to Apple or Google for fixation. This implies that vulnerabilities that might impact millions of users are left unpatched while surveillance programs take advantage of them.

NSO creates its own zero-day exploits rather than merely purchasing them. Teams of knowledgeable security researchers are employed by the corporation to discover novel methods of breaking into cellphones. Although this research and development is expensive, it is necessary to keep Pegasus functioning as phone manufacturers keep enhancing their security.

Technical Evolution and Arms Race

Pegasus's development is a reflection of the continuous arms race between digital businesses and spy firms. Every time Google fixes Android bugs or Apple publishes an iOS update, it may interfere with NSO's operations by plugging the security flaws that Pegasus takes use of.

At NSO, this has fueled ongoing innovation. Early iterations of Pegasus were comparatively simple to identify and required user interaction. Current iterations can infect phones without any user intervention and are nearly imperceptible.

Some of the technical innovations that NSO has developed include:

Exploit Chaining: Modern Pegasus attacks often use multiple vulnerabilities in sequence, with each exploit providing access that enables the next one.

Anti-Detection Techniques: The spyware includes sophisticated methods for avoiding detection by security software and forensic analysis tools.

Persistence Mechanisms: Pegasus can survive device reboots, software updates, and even factory resets in some cases.

Communication Security: The spyware uses advanced encryption and communication protocols to hide its activities from network monitoring.

The technical sophistication of modern Pegasus is such that many cybersecurity experts consider it to be on par with the capabilities that were once exclusive to nation-state intelligence agencies.

5. The Zero-Click Revolution

When Touching Nothing Means Everything

The evolution from "click-based" to "zero-click" exploitation represents one of the most significant advances in cyber warfare capabilities. To understand why this matters so much, imagine the difference between a pickpocket who needs you to reach into your wallet versus one who can empty your pockets while you're sleeping. Zero-click exploits are the digital equivalent of the latter.

Even the most advanced malware required victim interaction prior to zero-click capabilities. This gave rise to what security professionals refer to as "attribution opportunities"—times when forensic investigators might be able to link the attack to specific incidents. An unexpected download, an odd SMS message, or a dubious link in an email could all be signs of an assault.

These opportunities are eliminated by zero-click exploitation. Because there is no obvious trigger for the assault, victims can hardly detect that they have been infiltrated. The power dynamics between attackers and defenders have fundamentally changed as a result.

The WhatsApp Revolution

The most notorious example of NSO's zero-click capabilities came through their exploitation of WhatsApp, the world's most popular messaging platform with over 2 billion users. In 2019, researchers discovered that Pegasus could infect phones simply by placing a WhatsApp call—the target didn't even need to answer the call.

Here's how this attack worked:

1. **The Call That Wasn't:** Attackers would place a WhatsApp voice call to the target's phone number.
2. **Silent Exploitation:** During the call setup process, before the phone even rang, malicious code would exploit a vulnerability in WhatsApp's voice calling feature.
3. **Instant Infection:** The exploit would install Pegasus on the target's phone in seconds.
4. **Evidence Destruction:** The call log would often be automatically deleted, removing any trace of the attack.

Because malware was compatible with both iPhone and Android smartphones and could target anyone with a WhatsApp account—including journalists, activists, government officials, and regular people worldwide—this attack was especially destructive.

A significant legal dispute between NSO Group and WhatsApp, which is owned by Meta/Facebook, resulted from the revelation of this vulnerability. WhatsApp filed a \$1.6 billion lawsuit against NSO, claiming that the corporation had exploited their platform in violation of the Computer Fraud and Abuse Act and other laws.

The iMessage Gateway

Apple's iMessage platform became another major target for NSO's zero-click exploits. iMessage is particularly attractive to attackers because it's deeply integrated into iOS and has privileged access to many system functions.

NSO developed several different zero-click exploits targeting iMessage, including:

KISMET: This exploit targeted vulnerabilities in how iMessage processed certain types of images. A specially crafted image could trigger a buffer overflow that allowed attackers to execute their own code.

FORCEDENTRY: Perhaps the most sophisticated iMessage exploit, FORCEDENTRY could bypass multiple layers of iOS security, including Apple's BlastDoor sandbox that was specifically designed to prevent these types of attacks.

These exploits were so effective that they worked against the latest iPhone models running the most recent versions of iOS. They represented years of research and development, with NSO's engineers reverse-engineering Apple's security mechanisms and finding creative ways to circumvent them.

The PDF Weaponization

The weaponization of PDF documents was another creative zero-click vector created by NSO. Because PDF files are frequently exchanged via email and messaging apps, this attack vector was especially sneaky because it appeared to be entirely authentic.

The attack was successful because it exploited vulnerabilities in iOS's handling of particular types of PDF files. As is typical with many messaging apps, the victim's phone would automatically create a preview of the PDF, which would trigger the malicious code to run and install Pegasus.

Without any indication that their phone had been compromised, the target would see what appeared to be a normal PDF document. The subtlety of this attack made it noteworthy.

Network Injection Attacks

NSO also developed protections against "network injection" assaults. These do not require sending anything directly to the target's phone. Instead, they exploit the target's network traffic as it passes through internet infrastructure.

When a target uses particular apps or accesses particular websites, NSO's tools can introduce malicious code into network traffic. Then, by exploiting vulnerabilities in the target's software or browser, this code installs Pegasus.

These assaults are extremely difficult to fight against since they can be launched from any location in the world and do not require direct contact with the target.

The Detection Challenge

Zero-click exploits present enormous challenges for detection and prevention. Traditional security approaches that look for suspicious user behavior or obvious signs of compromise are largely ineffective against attacks that leave no visible traces.

Some of the challenges include:

No User Indicators: Because the victim doesn't take any action that leads to infection, there are no behavioral patterns to analyze.

Sophisticated Hiding: Modern Pegasus versions include advanced anti-forensic capabilities designed to hide their presence from security tools.

Legitimate Traffic Mimicry: The network traffic generated by Pegasus is designed to look like normal, legitimate communications.

Kernel-Level Access: Once installed, Pegasus operates with the highest levels of system privileges, making it extremely difficult to detect or remove.

The Global Impact

The development of zero-click capabilities has had a major impact on cybersecurity worldwide. Because of the significant changes in the hazard landscape, governments and other actors are now able to conduct monitoring operations that were previously impractical.

The technology has also raised new questions about the ethics of cybersecurity research. Finding and exploiting security flaws that could affect millions of people is a common component of zero-click exploit strategies. The decision to weaponize these flaws rather than report them to providers for fixing has significant implications for global cybersecurity.

Counter-Measures and the Arms Race

The development of zero-click exploits has prompted significant responses from technology companies. Apple, Google, and others have invested heavily in developing new security mechanisms designed to prevent these types of attacks.

Some of the countermeasures that have been developed include:

Sandboxing Improvements: Both iOS and Android have implemented more sophisticated sandboxing mechanisms designed to isolate potentially dangerous code.

Attack Surface Reduction: Companies have worked to reduce the number of ways that external content can trigger code execution.

Behavior Analysis: New security tools attempt to detect the presence of spyware by analyzing device behavior rather than looking for specific signatures.

Hardware Security: Both Apple and Google have implemented hardware-based security features that make certain types of attacks more difficult.

This weapons race is still going on, though. Attack methods change as defenses get better. This will continue to be a dynamic and changing threat landscape as NSO and other businesses keep coming up with new ways to get around security barriers.

Beyond merely a technological development, the zero-click revolution signifies a profound change in the power dynamics between those who perform surveillance and those who are surveilled. The conventional beliefs about security and privacy are no longer valid in a world where anyone's phone can be compromised without them doing anything.

6. The Global Marketplace of Secrets

A World Divided by Digital Espionage

Like a digital virus, Pegasus had taken over the world by 2021, affecting not just phones but also the way entire nations conducted surveillance. NSO Group's client list read like a who is who of totalitarian governments, faltering democracies, and everything in between, demonstrating that the software was not only being used in a few nations but had spread throughout the world.

It is necessary to look beyond geography in order to understand Pegasus' global deployment. This is not just about which countries bought the software; it is also about how different political structures, legal frameworks, and cultural views on privacy produced drastically different circumstances for its use. Pegasus was employed as a legitimate counterterrorism weapon in a number of countries. In others, it became the digital equivalent of a secret police force.

It was easy to see why Pegasus was so popular with governments all over the world. In a world where individuals lived their lives on cellphones, traditional surveillance techniques like wiretapping, informants, and physical surveillance were becoming less and less relevant. The opportunity to become a fly on the wall in someone's private life, anywhere in the world, without that person ever knowing, was something Pegasus provided that had never been available before.

The Economics of Digital Oppression

The business model that NSO Group developed wasn't just technologically innovative—it was economically revolutionary. Instead of selling surveillance capabilities as a one-time purchase, NSO created what amounts

to "Surveillance as a Service." This approach had profound implications for how governments around the world approached intelligence gathering and domestic monitoring.

A typical Pegasus deployment involved much more than just software licensing. NSO would provide:

Infrastructure Setup: Custom servers and communication networks to handle the surveillance operations, often hosted in the client country to avoid jurisdictional issues.

Target Identification: Assistance in identifying potential targets and developing attack strategies tailored to specific individuals or groups.

Operational Support: Ongoing technical support to maintain access to compromised devices and adapt to security updates.

Training and Consultation: Education for client personnel on how to use the intelligence gathered through Pegasus effectively.

Plausible Deniability: Legal and technical structures designed to make it difficult to trace surveillance activities back to the client government.

Because of this all-encompassing strategy, even governments with low technical proficiency may implement complex surveillance programs. Suddenly, a small nation with little experience in cybersecurity could have monitoring capabilities comparable to those of large intelligence organizations.

The pricing structure reflected this all-inclusive service model. According to court papers and WikiLeaks materials, a basic Pegasus deployment typically started at around \$8 million, while larger, more thorough operations might potentially cost over \$55 million. The program as well as all the infrastructure and support systems required to run it effectively were funded by these costs.

This was a great return on investment for many nations. Pegasus's intelligence might be utilized for everything from political opposition research to counterterrorism operations. In essence, the program gave governments the ability to use any smartphone in their nation as a possible spy tool.

Regional Deployment Patterns

The global spread of Pegasus wasn't random—it followed distinct patterns that reflected regional politics, security concerns, and economic capabilities.

Middle East and North Africa: This region became NSO's primary market, accounting for a significant portion of their revenue. Countries in this region faced genuine terrorism threats, but also had authoritarian governments interested in monitoring political opposition and civil society.

According to reports, Saudi Arabia spent tens of millions of dollars on Pegasus deployments, making it one of NSO's most important clients. When the use of Pegasus by the Saudi government was connected to the monitoring of Saudi dissidents overseas, including the acquaintances of slain journalist Jamal Khashoggi, it became very contentious.

Another significant customer was the United Arab Emirates, which made substantial use of Pegasus to keep tabs on political dissidents, journalists, and human rights advocates. Evidence suggests that Pegasus was used to target people in North America and Europe, demonstrating the extent of the UAE's surveillance operations.

Europe: Several European countries became Pegasus clients, though their use of the software was generally more restrained than in authoritarian regimes. However, even in democratic countries, the temptation to use Pegasus for purposes beyond its intended scope proved difficult to resist.

Poland's use of Pegasus became a major political scandal when it was revealed that the software had been used to spy on opposition politicians, judges, and journalists. The revelations led to a political crisis and investigations by European Union institutions.

Hungary's Viktor Orbán government was another European client, reportedly using Pegasus to monitor journalists and civil society organizations critical of the government.

Americas: Several Latin American countries became NSO clients, often justifying their purchases as necessary tools for fighting drug cartels and organized crime.

Mexico was one of NSO's most controversial clients. Despite the country's struggles with organized crime, much of Mexico's Pegasus usage appeared to be directed at journalists, human rights activists, and political opponents rather than criminals.

Asia-Pacific: This region showed more varied adoption patterns, with some countries embracing Pegasus while others remained skeptical of NSO's offerings.

India became a significant Pegasus client, though the extent of the government's use of the software remained controversial and politically charged. Evidence suggested that Pegasus was used to monitor opposition politicians, journalists, and civil rights activists.

The Client Vetting Myth

In order to ensure that Pegasus is only used for legitimate purposes, NSO Group has consistently said that they have strict processes in place to check potential customers. Companies' representatives frequently emphasized their "ethical guidelines" and declared that they would not do business with countries that had a poor human rights record.

Several investigations and leaked documents revealed a totally different reality. There was little evidence of any actual oversight or control over the software's use, and NSO's clients included some of the most repressive nations in the world.

Several factors contributed to the gap between NSO's stated policies and actual practices:

Financial Pressure: As a private company with investors to satisfy, NSO faced constant pressure to grow revenue and expand their client base. This created incentives to overlook ethical concerns in favor of profitable contracts.

Plausible Deniability: NSO's business model was structured to provide plausible deniability for both the company and its clients. By operating the software on behalf of clients, NSO could claim they didn't know exactly how it was being used.

Legal Loopholes: NSO operated in a regulatory environment where the laws governing surveillance technology exports were often unclear or poorly enforced. This allowed them to sell to clients who might not have been eligible for other types of security assistance.

Client Sophistication: Many NSO clients became adept at presenting legitimate-sounding justifications for their surveillance activities, making it easier for NSO to rationalize controversial sales.

The Network Effect

One of the most concerning features of Pegasus's worldwide rollout was the "network effect." It became simpler to defend its usage and more difficult to uphold international standards against digital surveillance as more nations obtained the program.

When compared to their neighbors who had adopted the technology, nations that had first opposed buying Pegasus frequently found themselves at a disadvantage. This sparked to a sort of "surveillance arms race" in which nations felt pressured to purchase Pegasus in order to stay on level with their regional competitors.

In areas where political tension or security competition was high, the network effect was especially noticeable. As soon as one nation in a region obtained Pegasus, others frequently did the same.

Impact on International Relations

The global deployment of Pegasus had significant implications for international relations and diplomacy. The software's capabilities made it possible for governments to spy on foreign officials, diplomats, and citizens in ways that had previously been impossible.

Several diplomatic incidents arose from the use of Pegasus for international espionage:

Cross-Border Surveillance: Multiple countries used Pegasus to monitor their citizens living abroad, effectively extending their surveillance capabilities beyond their borders.

Diplomatic Espionage: There were reports of Pegasus being used to spy on foreign diplomats and government officials, potentially violating international law and diplomatic norms.

Corporate Espionage: Some evidence suggested that Pegasus was used for commercial espionage, giving client countries unfair advantages in international business negotiations.

These activities strained diplomatic relationships and raised questions about whether existing international law was adequate to address the challenges posed by commercial surveillance technology.

7. When Journalism Became a Crime: Major Incidents and Victims

The Assassination That Shocked the World

The murder of Jamal Khashoggi in October 2018 shocked the world, but it was not until months later that investigators realized how much of his monitoring was digital that the whole horror of what had transpired became apparent. The Washington Post published articles by Khashoggi, a Saudi journalist in exile who had been harshly critical of Saudi Crown Prince Mohammed bin Salman. Khashoggi had been living under constant digital surveillance by Pegasus spyware, which the world was unaware of until much later.

According to the study, Saudi Arabia has been using Pegasus to keep tabs on Khashoggi as well as a global network of Saudi activists, journalists, and dissidents. Several members of Khashoggi's inner circle, including other Saudi journalists and human rights advocates, had Pegasus infected on their phones in the months preceding his murder, according to phone records and forensic research.

The finding that Omar Abdulaziz, a Saudi activist who lives in Canada and is close to Khashoggi, had Pegasus on his phone was possibly the most horrifying. The two men had been in constant communication as they planned projects to oppose Saudi propaganda and promote democratic reforms. Saudi authorities were able to learn a great deal about Khashoggi's contacts, goals, and activities thanks to the surveillance.

The Khashoggi case was about more than simply the untimely death of a single journalist; it was about a fundamental change in the way authoritarian governments deal with dissent in the digital era. Political dissidents were no longer protected by traditional exile, which had previously guaranteed a certain amount of security. Authoritarian regimes might continue to monitor its opponents wherever in the world with the use of programs like Pegasus.

The Journalist Who Fought Back

Ahmed Mansoor's story began with two text messages that arrived on his iPhone in August 2016. The messages, which appeared to be from human rights organizations, contained links that promised information about torture in UAE prisons. For most people, these might have seemed like legitimate messages worth investigating. But Mansoor, a prominent human rights activist in the United Arab Emirates, had learned to be suspicious of unsolicited messages.

Mansoor sent the messages to researchers at the University of Toronto's Citizen Lab, a cybersecurity research group, rather of clicking on the links. The world's perception of mobile phone security was irrevocably altered by what they found. The first zero-click iPhone exploits ever found by security experts were included in the links; these exploits may compromise an iPhone running the most recent version of iOS without any user intervention.

This finding was noteworthy for a number of reasons. First, it became clear that Pegasus was being used against human rights advocates rather than terrorists or criminals. Secondly, it demonstrated that the software was significantly more advanced than anyone had thought, with the ability to take advantage of flaws that Apple was unaware of.

Mansoor paid a heavy price for escaping the Pegasus virus. Authorities in the UAE were already harassing him for his human rights work, but the botched surveillance attempt appeared to pique their curiosity even more. He was taken into custody and accused of a number of offenses relating to his internet activity in March 2017. He was given a 10-year prison term and is still behind bars.

The use of monitoring techniques like Pegasus by governments is exemplified by the case of Mansoor. The attempt frequently results in further pressure being placed on targets through conventional law enforcement and judicial processes, even in cases when the technical surveillance is unsuccessful.

The Mexican Cartel Connection That Wasn't

Mexico's relationship with NSO Group represents one of the most troubling examples of how surveillance technology intended for fighting serious crime can be turned against civil society. The Mexican government, under President Enrique Peña Nieto, reportedly spent over \$80 million on Pegasus licenses, justifying the expenditure as necessary for fighting drug cartels and organized crime that had plagued the country for decades. Investigations later shown that the reality was very different. Much of Mexico's use of Pegasus was directed against political opponents of the government, human rights activists, and journalists rather than drug traffickers and cartel leaders.

One of Mexico's most well-known investigative journalists, Carmen Aristegui, was involved in one of the most startling incidents. Aristegui had been looking into corruption in the government, including a scandal between a government contractor and the wife of President Peña Nieto. In addition to Aristegui's phone, her son's and other family members' phones were also infected with Pegasus.

The surveillance of Aristegui wasn't an isolated incident. Investigations revealed that dozens of Mexican journalists had been targeted with Pegasus, including:

Reporters investigating government corruption: Journalists working on stories about official misconduct found their phones infected with spyware.

News anchors critical of the government: Even prominent television personalities who had criticized government policies were targeted.

Investigative teams: In some cases, entire newsroom teams working on sensitive stories were placed under surveillance.

What made the Mexican case particularly disturbing was the extent to which family members, including children, were targeted. The surveillance often extended beyond the primary targets to include spouses,

children, and other relatives, apparently in an effort to gather compromising information or find pressure points.

The Indian Political Earthquake

India's relationship with Pegasus became one of the most politically charged surveillance scandals in the country's history, involving opposition politicians, journalists, judges, and even government ministers in a controversy that reached the highest levels of the Indian political system.

The scandal broke in July 2021 when an international investigation revealed that Indian phone numbers appeared on a list of potential Pegasus targets. The list included some of the most prominent figures in Indian politics, journalism, and civil society.

Among the confirmed targets were:

Rahul Gandhi: The leader of the main opposition Congress Party, whose phone showed signs of Pegasus infection during a period when he was actively campaigning against the ruling BJP party.

Prashant Kishor: A political strategist who had worked with various parties, including opposition groups critical of Prime Minister Narendra Modi's government.

Supreme Court Judges: Perhaps most shocking was evidence that phones belonging to Supreme Court justices had been targeted, raising questions about the independence of India's judiciary.

Journalists and Editors: Dozens of prominent Indian journalists found their phones on the target list, including reporters who had been critical of government policies.

The Indian government's response to the Pegasus revelations was to deny any wrongdoing while refusing to answer specific questions about whether it had purchased or used the software. This non-denial denial became a source of ongoing political controversy.

The scandal had significant implications for Indian democracy. Opposition parties demanded investigations and called for the resignation of government officials. The Supreme Court eventually appointed a technical committee to investigate the allegations, but the political damage had already been done.

The Ripple Effect: Families Under Surveillance

One of the most disturbing aspects of many Pegasus cases was the extent to which surveillance extended beyond primary targets to include family members, including children. This pattern was documented in multiple countries and represented a significant escalation in the invasiveness of government surveillance.

In Mexico, the family members of targeted journalists often found their phones infected with Pegasus. This included minor children, whose surveillance raised serious questions about international law protections for children's rights.

Similar trends were noted in other nations, when the same intrusive monitoring was applied to the wives, kids, and even elderly parents of surveillance targets. This "network surveillance" strategy seems to be intended to obtain more information about targets while also applying psychological pressure due to the awareness that entire families were being watched.

Human rights organizations and legal experts strongly criticized the targeting of family members, especially youngsters. Regardless of what their parents or other family members may have done, many claimed that this kind of surveillance was against international rules safeguarding children's rights and privacy.

The Global Pattern: Silencing Dissent

In each of these instances, a distinct pattern of government usage of Pegasus became apparent. Despite NSO Group's assertions that the software was designed to combat serious crime and terrorism, the great majority of recorded targets were civil society leaders, journalists, human rights advocates, and political dissidents.

This trend was consistent across nations, political structures, and cultural norms. The temptation to utilize Pegasus against political critics and opponents was strong in both totalitarian and democratic nations.

This pattern's constancy prompted serious concerns regarding the business strategy and supervision practices of NSO Group. How could there have been so much abuse among so many different clients if the organization was truly dedicated to stopping software misuse?

The cases also demonstrated how widespread the spying was. Targets included ambassadors, foreign-based journalists and activists, and even foreign nationals, in addition to local dissidents. This implied that Pegasus was being used for international espionage activities in addition to domestic surveillance.

8. Digital David vs. Corporate Goliath: Legal Warfare

WhatsApp Throws the First Punch

In October 2019, WhatsApp fired what would become the opening shot in a legal war against NSO Group. The Facebook-owned messaging platform filed a lawsuit in federal court in California, alleging that NSO had violated the Computer Fraud and Abuse Act by exploiting vulnerabilities in WhatsApp's systems to install Pegasus spyware on users' phones.

For a number of reasons, the lawsuit was pioneering. Legal precedents that will impact future cases were set by the first direct lawsuit of a surveillance software vendor by a large technological corporation. Beyond the legal jargon, however, the WhatsApp action symbolized something more basic: a tech behemoth waging a court battle to defend its platform and its users against what it perceived to be an attack.

The allegations made in the complaint against WhatsApp sound like they belong in a cyberthriller book. The complaint claims that NSO had taken advantage of a flaw in WhatsApp's voice calling functionality that let attackers install Pegasus by just contacting a target's phone number. The infection occurred during the call setup process, frequently before the phone even rang, thus the victim did not have to answer the call.

What made this attack particularly insidious was its scale and precision. WhatsApp alleged that NSO had used this vulnerability to target approximately 1,400 users across multiple countries, including journalists, human rights activists, political dissidents, and diplomats. The targets spanned the globe, from London to New Delhi, from Mexico City to Riyadh.

The attack's technical sophistication was astounding. NSO had discovered a hitherto undiscovered vulnerability, reverse-engineered WhatsApp's voice calling protocols, and created an exploit that would consistently function on various phone models and OS versions. Because the entire procedure was automated, NSO was able to carry out extensive surveillance missions with little assistance from humans.

In addition to monetary damages, WhatsApp's lawsuit requested a permanent injunction that would bar NSO from using WhatsApp's infrastructure going forward. The business claimed that NSO had violated both legal and technological limits by effectively using WhatsApp's own infrastructure as a weapon against its users.

NSO had a multipronged approach to defense. Because it was basically functioning as a government contractor, offering services to sovereign states, the corporation contended that it was exempt from lawsuits. They asserted that their operations were shielded by ideas of sovereign immunity and that they were not responsible for the decisions made by their government customers regarding the usage of their products.

The ensuing court battle was difficult and complicated. On a number of grounds, NSO sought to have the action dismissed, claiming that Israeli companies were not subject to U.S. courts, that their operations were shielded by sovereign immunity, and that they were only supplying technology that governments may use for legal purposes.

WhatsApp retaliated with thorough technical proof of NSO's operations and expert testimony regarding the effects of the spying on its users, supported by the significant legal resources of Meta (Facebook). Some of the best cybersecurity attorneys in the nation were on the company's legal staff, and they were committed to holding NSO responsible.

The case dragged on for years, with both sides filing numerous motions and engaging in extensive discovery. The legal battle provided unprecedented insight into NSO's operations, as the company was forced to produce internal documents and communications that revealed details about their business practices, client relationships, and technical capabilities.

Apple's Billion-Dollar Gambit

In November 2021, Apple escalated the legal war against NSO Group with a lawsuit that was even more ambitious than WhatsApp's. The iPhone maker filed suit in federal court, seeking not only monetary damages but also a permanent injunction that would effectively put NSO out of business in the United States.

Apple's lawsuit was notable for several reasons. First, it came from the world's most valuable company, giving it enormous resources to pursue the case. Second, Apple alleged that NSO had specifically targeted iPhone users with sophisticated exploits that bypassed multiple layers of iOS security. Third, the company was seeking what it called "exemplary damages" that could potentially reach billions of dollars.

The timing of Apple's lawsuit was significant. It came just months after the Pegasus Project revelations had exposed the global scope of NSO's surveillance operations. Apple CEO Tim Cook had been increasingly vocal about privacy issues, positioning Apple as a defender of user privacy against government surveillance and corporate data collection.

Apple's complaint painted a picture of NSO as a sophisticated adversary that had specifically targeted Apple's security measures. The company alleged that NSO had developed multiple zero-day exploits targeting iOS, including the sophisticated FORCEDENTRY exploit that could bypass Apple's BlastDoor security feature.

The lawsuit included technical details about NSO's attack methods that had never been publicly disclosed before. Apple described how NSO had created fake Apple IDs, used compromised Apple infrastructure, and even created fake Apple certificates to make their attacks more convincing.

Perhaps most damaging was Apple's allegation that NSO had engaged in what amounted to "abuse of process." The company argued that NSO was using Apple's own systems and infrastructure to attack Apple's customers, essentially turning Apple's technology against its users.

Apple's legal strategy was to position NSO not as a legitimate technology company but as a bad actor that was fundamentally incompatible with the technology ecosystem. The company sought not just compensation for damages but a permanent injunction that would prevent NSO from using any Apple products, services, or infrastructure in the future.

Such an injunction would be devastating for NSO, effectively cutting the company off from one of the world's largest technology ecosystems. NSO's employees wouldn't be able to use iPhones or iPads, the company couldn't use Apple services for development or testing, and they would be prohibited from reverse-engineering Apple products to develop new exploits.

The Sovereign Immunity Shield

Sovereign immunity was the main legal defense offered by NSO Group in the Apple and WhatsApp cases. The business contended that since it was serving government customers, it ought to be shielded from litigation by the same legal rules that shield public servants from being held accountable for their official acts.

This defense was crucial to NSO's business strategy both practically and legally. It may possibly shield an entire sector from legal accountability if it is successful in setting a precedent that would shield other monitoring technology businesses from similar claims.

The sovereign immunity argument had several components:

Government Contractor Defense: NSO argued that it was essentially acting as a government contractor, providing services to sovereign nations for legitimate law enforcement and national security purposes. Under this theory, the company should be immune from lawsuits related to activities conducted on behalf of government clients.

Foreign Sovereign Immunity: The company argued that its activities were conducted on behalf of foreign governments and should therefore be protected by principles of foreign sovereign immunity that prevent U.S. courts from interfering with the activities of foreign nations.

Derivative Immunity: NSO claimed that because its government clients would be immune from lawsuits for their surveillance activities, the company should enjoy similar protection as their agent or contractor.

The legal arguments were complex, but the practical implications were enormous. If NSO could successfully claim sovereign immunity, it would essentially place surveillance technology companies beyond the reach of civil lawsuits, even when their products were used to violate human rights or break domestic laws.

The Discovery Wars

With NSO's immunity defenses rejected, the cases moved into the discovery phase, where both sides could demand internal documents and communications from their opponents. This phase proved particularly damaging for NSO, as the company was forced to produce evidence about its operations that it had previously kept secret.

The discovery process revealed numerous internal NSO documents that contradicted the company's public statements about its business practices and oversight procedures. Internal emails showed NSO employees discussing surveillance targets that appeared to be journalists and activists rather than terrorists or criminals. Financial documents revealed the true extent of NSO's global operations and the substantial revenues generated from surveillance contracts.

Perhaps most damaging were communications between NSO and its government clients that showed the company was aware that its software was being used for purposes beyond legitimate law enforcement and national security. These documents undermined NSO's claims that it had no knowledge of or control over how its software was used.

The discovery process also revealed technical details about NSO's operations that had been closely guarded secrets. Court filings included information about NSO's exploit development process, their methods for targeting specific individuals, and the infrastructure they used to operate Pegasus.

Financial Consequences

The legal battles have had severe financial consequences for NSO Group. The company has reportedly spent tens of millions of dollars on legal fees, and the potential damages in the various lawsuits could exceed \$2 billion.

The legal cases have affected NSO's operations more broadly than just the direct costs of litigation. The litigation's bad press has made it harder for the business to draw in new customers and keep hold of its current clientele. Due to political and legal pressure, a number of reported clients have reportedly halted or terminated their relationships with NSO.

The legal issues have also made it difficult for the business to get insurance and funding. Because of the possible liability exposure and reputational hazards, banks and insurance firms are now hesitant to do business with NSO.

The Precedent Effect

The legal cases against NSO have established important precedents that will likely affect the broader surveillance technology industry. The rulings rejecting sovereign immunity claims make it clear that private companies cannot hide behind their government clients when their products are used to violate laws or human rights.

Additionally, the trials have demonstrated that IT firms possess the resources and legal stature necessary to combat surveillance suppliers. Apple and WhatsApp's victories over NSO's procedural defenses have probably prompted other businesses to think about pursuing comparable legal action.

Most significantly, the trials have shown that the law can still apply to the surveillance technology sector. Because of their covert operations and governments' resistance to regulating surveillance technologies, organizations such as NSO were able to function with a certain amount of impunity for many years. Even in this dubious sector, accountability is achievable, as demonstrated by the court rulings against NSO.

9. Governments Strike Back: Sanctions and Regulations

America's Nuclear Option: The Entity List

On November 3, 2021, the United States Department of Commerce delivered what amounted to a death blow to NSO Group's business model. The department added NSO Group and three other Israeli surveillance

companies to its Entity List, effectively blacklisting them from doing business with American companies without special government approval.

The Entity List designation wasn't just another regulatory hurdle—it was economic warfare conducted through bureaucratic means. The list, originally created to prevent sensitive American technology from reaching adversaries like China and Russia, had never before been used against commercial surveillance companies. NSO's inclusion marked a fundamental shift in how the U.S. government viewed the commercial spyware industry.

The immediate impact was devastating. NSO Group relied heavily on American technology companies for everything from cloud computing services to software development tools. Amazon Web Services, Microsoft Azure, Google Cloud Platform—all of these became off-limits overnight. The company couldn't purchase new iPhones for testing, couldn't use American-made servers for their operations, and couldn't access the American financial system for many transactions.

But the real genius of the Entity List designation was its secondary effects. The designation didn't just prohibit American companies from selling to NSO—it created powerful incentives for non-American companies to avoid doing business with NSO as well. Any company that used American technology in their products (which included virtually every major technology company in the world) risked violating U.S. export control laws if they continued working with NSO.

The Commerce Department's announcement was notably specific about NSO's activities. The department stated that NSO had "developed and supplied spyware to foreign governments that used these tools to maliciously target government officials, journalists, businesspeople, activists, academics, and embassy workers." This wasn't a generic accusation of wrongdoing—it was a detailed indictment of NSO's business model.

The Domino Effect Across Agencies

The Entity List designation was just the beginning. Within months, other U.S. government agencies began taking action against NSO and similar companies, creating a coordinated pressure campaign that extended far beyond export controls.

The Treasury Department's Office of Foreign Assets Control (OFAC) began investigating whether NSO's activities warranted sanctions under various human rights and terrorism-related authorities. While no sanctions were ultimately imposed, the investigation itself created additional uncertainty for companies considering doing business with NSO.

In its yearly human rights reports, the State Department started mentioning commercial spyware, specifically naming firms such as NSO and describing how their products were being used to violate human rights globally.

By making it politically impossible for governments to openly purchase surveillance technology, this diplomatic pressure supplemented the economic efforts.

Most notably, the Justice Department started looking into whether NSO's operations in the US were illegal under federal criminal law. The investigation made it very evident that monitoring technology companies may be prosecuted for their actions, even though no charges were eventually brought.

Congress Gets Involved

The legislative branch didn't remain on the sidelines. Multiple congressional committees launched investigations into NSO and the broader commercial spyware industry, holding hearings and demanding documents from both the companies and the government agencies responsible for regulating them.

The House Intelligence Committee conducted a particularly thorough investigation, examining not just NSO's activities but also the broader policy questions raised by commercial surveillance technology. The committee's findings, released in a series of reports, documented extensive misuse of surveillance tools and called for stronger regulatory oversight of the industry.

Congressional pressure also led to legislative action. Several bills were introduced to strengthen oversight of surveillance technology exports, create new legal remedies for surveillance victims, and establish clearer boundaries around government use of commercial spyware tools.

International Coordination

The U.S. actions against NSO didn't occur in isolation. American officials worked closely with allies to coordinate international pressure on the surveillance technology industry, creating what amounted to a global regulatory response.

The European Union started creating its own structure for exporting surveillance technology, mostly based on the American model but modified to fit European political and legal frameworks. To make sure they could stop harmful monitoring technologies from getting to troublesome end users, several European nations, such as Germany and the Netherlands, started evaluating their own export control frameworks.

Because surveillance technology corporations had become skilled at jurisdictional arbitrage—moving operations to nations with more lenient regulatory regimes when faced with constraints in their home countries—the concerted international reaction was essential. Major democracies made it considerably harder for businesses to evade regulatory scrutiny by coordinating their responses.

The Israeli Government's Dilemma

NSO's troubles created a significant diplomatic and economic challenge for the Israeli government. The company was one of Israel's most successful technology exports, and its problems threatened to damage Israel's reputation as a leader in cybersecurity innovation.

Israeli officials first made an effort to defend NSO, claiming that the organization offered countries legitimate assistance to combat severe crime and terrorism. According to reports, Prime Minister Benjamin Netanyahu brought up the matter personally with US officials, claiming that a significant Israeli enterprise was being unjustly harmed by the Entity List classification.

However, the Israeli government found it more and more difficult to uphold its position as proof of NSO involvement in violations of human rights grew. In addition to pressure from the firm and its supporters to protect Israeli commercial interests, the government also faced pressure from opposition parties and its own civil society organizations to take action against NSO.

The Israeli government's eventual response was to strengthen its own oversight of surveillance technology exports. New regulations were implemented requiring more detailed review of surveillance technology sales, particularly to countries with poor human rights records. While these measures didn't satisfy all critics, they represented a significant change in how Israel approached the regulation of its surveillance technology industry.

Global Regulatory Awakening

The NSO case catalyzed a broader global awakening about the need to regulate commercial surveillance technology. Countries that had previously paid little attention to this industry began developing their own regulatory frameworks, often modeled on the American approach.

European Union Response: The EU began developing comprehensive regulations for surveillance technology exports, including the proposed "Dual-Use Export Control Regulation" that would specifically address commercial spyware. The European Parliament also launched investigations into EU member states' use of surveillance technology against their own citizens.

United Kingdom Action: The UK government strengthened its export control system to better address surveillance technology, while also launching investigations into British companies involved in the surveillance technology trade.

Canadian Measures: Canada updated its export control system to include more detailed restrictions on surveillance technology, while also providing support for civil society organizations working to combat digital surveillance.

The well-coordinated global reaction proved that the NSO case had radically altered the perception of commercial surveillance technology in democratic countries. What was formerly thought to be a specialized sector of little importance has grown to be a top policy priority that calls for concerted worldwide action.

Enforcement Challenges and Loopholes

Despite the comprehensive nature of the regulatory response, enforcement proved challenging. Surveillance technology companies had become adept at working around regulatory restrictions, using shell companies, offshore operations, and complex corporate structures to continue their activities.

The NSO itself used a number of tactics to get around the Entity List designation, such as reorganizing its corporate ownership, spinning off some of its businesses, and trying to move important tasks to nations where U.S. restrictions do not apply. Despite their lack of success, these initiatives showed how challenging it is to control a worldwide industry with domestic regulations.

The difficulties with enforcement made it clear that more advanced regulatory strategies and even greater international cooperation are required. Regulators needed to create more sophisticated strategies that could adjust to the sophisticated evasion techniques used by the surveillance technology business; simply placing companies on blacklists was insufficient.

10. The Pegasus Papers: When Secrets Spilled

The Investigation That Changed Everything

In July 2021, the world woke up to the most comprehensive exposé of government surveillance activities in modern history. The Pegasus Project, a collaborative investigation involving 17 media organizations and more than 80 journalists worldwide, revealed the global scope and systematic abuse of NSO Group's Pegasus spyware in unprecedented detail.

The investigation was based on a leaked list of more than 50,000 phone numbers that had been selected as potential targets for surveillance by NSO Group's clients. This wasn't just a random collection of numbers—it was a carefully curated database of people whom governments around the world considered worth watching, intimidating, or eliminating.

The list resembled a who is who of political opposition, journalism, and civil society around the world. Presidents and prime ministers were among them, but so were obscure human rights advocates, small-town journalists reporting on corruption, and relatives whose only transgression was having a connection to someone who had opposed their government.

The forensic proof that was included with the leaked list was just as powerful as the extent of the spying in the Pegasus Project revelations. In order to verify that dozens of devices had in fact been infected with Pegasus spyware, the journalists collaborated with security professionals to do in-depth technical examination of phones belonging to possible targets.

The Technical Smoking Gun

Unquestionable technological proof of NSO Group's worldwide monitoring operations was revealed by the forensic analysis carried out as part of the Pegasus Project. Researchers found evidence of Pegasus infections on dozens of phones used by political heavyweights, journalists, and activists using advanced digital forensics techniques.

One of the top digital forensics groups in the world, Amnesty International's Security Lab, carried out the technical analysis. Because Pegasus was meant to be nearly undetectable by conventional security technologies, the researchers created new methods especially for identifying Pegasus infections.

The forensic evidence included:

Network Traffic Analysis: Researchers identified suspicious network communications between infected phones and servers controlled by NSO Group, providing clear evidence of ongoing surveillance activities.

File System Analysis: Deep analysis of phone storage revealed artifacts left behind by Pegasus infections, including modified system files and suspicious data storage patterns.

Process Monitoring: Researchers documented unusual system processes and memory usage patterns consistent with advanced spyware infections.

Communication Pattern Analysis: The analysis revealed patterns of data exfiltration that matched known Pegasus capabilities, including the systematic theft of messages, location data, and other sensitive information. This technical evidence was crucial because it moved the conversation beyond speculation and allegations. For the first time, there was definitive proof that NSO Group's claims about their oversight and control mechanisms were false—the company was clearly aware of and facilitating widespread surveillance of civil society targets.

Media Coordination and Global Impact

The Pegasus Project represented a new model for international investigative journalism. The 17 participating media organizations included some of the world's most prestigious news outlets: The Washington Post, The Guardian, Le Monde, Süddeutsche Zeitung, and many others.

Such a large-scale study needs unparalleled collaboration. To protect their sources and topics, journalists had to maintain operational security while working across time zones, languages, and legal systems. Journalists meticulously confirmed every assertion and cross-referenced information from many nations and situations during the months-long preparatory phase of the study.

The investigation's worldwide scope was essential to its influence. Governments were unable to write off the reports as the product of political rivals or hostile foreign media when they were published concurrently in

several languages and nations. It was impossible to dismiss the revelations due of the consistent findings across several newsrooms and nations.

Country-by-Country Revelations

The Pegasus Project revelations unfolded like a global thriller, with each participating news organization focusing on how Pegasus had been used in their specific countries or regions. The country-specific focus made the abstract concept of global surveillance concrete and personal for readers around the world.

Mexico's Democratic Crisis: Mexican journalists revealed that the country had spent over \$80 million on Pegasus contracts, but instead of targeting cartel leaders, the software was used to spy on journalists, human rights activists, and even children of targeted individuals.

India's Political Surveillance: Indian media documented how Pegasus had been used to target opposition politicians, Supreme Court justices, and prominent journalists, raising fundamental questions about the health of Indian democracy.

Hungary's Authoritarian Turn: Investigations revealed extensive use of Pegasus against journalists and civil society organizations in Hungary, providing concrete evidence of the Orbán government's increasingly authoritarian practices.

Morocco's International Reach: Reporting showed how Morocco had used Pegasus to surveil not just domestic targets but also foreign journalists and activists, including French and Spanish reporters covering Moroccan affairs.

Each country-specific investigation added another layer to the global picture, showing how NSO Group had enabled surveillance activities that spanned continents and political systems.

The Human Cost of Digital Surveillance

Beyond the technical details and political implications, the Pegasus Project put a human face on the cost of pervasive digital surveillance. The investigations included detailed profiles of surveillance targets, showing how Pegasus had affected real people's lives in profound and often devastating ways.

Psychological Impact: Many surveillance targets described feeling paranoid and isolated after learning they had been monitored. The knowledge that their most private conversations had been intercepted created lasting trauma and changed how they interacted with family, friends, and colleagues.

Professional Consequences: Journalists found that sources were reluctant to speak with them after the surveillance revelations, making it difficult to continue their work. Human rights activists faced similar challenges as their networks of contacts became afraid to maintain regular communication.

Safety Concerns: For many targets, the surveillance revelations raised serious safety concerns. Activists and journalists realized that governments had detailed information about their movements, contacts, and activities that could be used to harm them or their families.

Relationship Damage: The surveillance often extended to family members and close associates, damaging personal relationships and creating suspicion within families and social networks.

Government Responses and Denials

The government responses to the Pegasus Project revelations followed predictable patterns, but the scale and coordination of the investigation made traditional denial strategies less effective.

Outright Denial: Some governments, including those of India and Morocco, issued blanket denials of any involvement with Pegasus, despite overwhelming evidence to the contrary.

Deflection and Minimization: Other governments acknowledged the use of surveillance technology but claimed it was used only for legitimate purposes and with appropriate oversight.

Legal Threats: Several governments responded to the revelations by threatening legal action against the journalists and news organizations involved in the investigation.

Regulatory Promises: Some governments promised to strengthen oversight of surveillance technology in response to the revelations, though critics questioned whether these promises would be kept.

The varied responses highlighted the global nature of the surveillance problem while also demonstrating the difficulty governments faced in responding to such well-documented and coordinated reporting.

The Ongoing Impact

The Pegasus Project's impact extended far beyond the initial wave of media coverage. The investigation established new standards for digital rights reporting, demonstrated the power of coordinated international journalism, and provided a blueprint for investigating other surveillance technology companies.

Legal Consequences: The technical evidence provided by the Pegasus Project became crucial evidence in multiple lawsuits against NSO Group, strengthening the cases brought by WhatsApp, Apple, and others.

Policy Changes: The revelations accelerated policy discussions about surveillance technology regulation in multiple countries, contributing to the regulatory responses discussed earlier.

Technical Innovation: The forensic techniques developed for the investigation advanced the field of digital forensics and provided new tools for detecting sophisticated spyware infections.

Industry Accountability: The investigation established new expectations for transparency and accountability in the surveillance technology industry, making it more difficult for companies to operate without public scrutiny.

11. Digital Detective Work: How to Catch the Uncatchable

The Forensic Revolution

When security researchers first began investigating Pegasus infections, they faced an almost impossible challenge: how do you detect something that was specifically designed to be invisible? Traditional antivirus software was useless—Pegasus operated at a level far below where commercial security tools could reach, and its developers had spent years perfecting techniques to evade detection.

The breakthrough came from an unexpected source: forensic archaeology. Just as archaeologists can reconstruct ancient civilizations from pottery shards and bone fragments, digital forensics experts learned to reconstruct Pegasus infections from the tiny traces that even the most sophisticated spyware inevitably leaves behind.

The techniques developed to detect Pegasus reads like a manual for digital detective work, combining cutting-edge technology with old-fashioned investigative persistence. These methods have not only helped expose NSO Group's activities but have also advanced the entire field of digital forensics, providing new tools for investigating cybercrime and protecting digital rights.

Amnesty International's Security Lab: The Digital CSI Unit

Amnesty International's Security Lab, a small group of researchers who have emerged as the world's foremost authorities on identifying commercial spyware, has been at the vanguard of the technical battle against Pegasus. This team, which operates from offices in Berlin and other remote locations worldwide, has created forensic methods that have revealed surveillance activities in dozens of nations.

The Security Lab takes a systematic and scientific approach to Pegasus detection. They start with what they refer to as a "digital autopsy"—a thorough analysis of every facet of the device's digital history—when they get a phone that may have been targeted.

Network Traffic Analysis: The first step is examining the phone's network communications. Even when Pegasus is dormant, it occasionally communicates with command-and-control servers operated by NSO Group. These communications are encrypted and designed to look like legitimate network traffic, but sophisticated analysis can identify patterns that suggest spyware activity.

File System Archaeology: Pegasus may be invisible to the user, but it cannot operate without leaving traces in the phone's file system. Researchers look for suspicious files, unusual permissions, and modifications to system directories that suggest unauthorized software installation.

Process Monitoring: Advanced Pegasus infections operate as legitimate system processes, making them difficult to identify through simple process monitoring. However, detailed analysis of process behavior, memory usage, and inter-process communications can reveal anomalies consistent with spyware activity.

Timeline Analysis: Perhaps the most powerful technique is timeline analysis—reconstructing the chronological sequence of events on a compromised device. By correlating system events with known attack vectors and suspicious network communications, researchers can often identify the precise moment when a device was infected.

The Mobile Verification Toolkit (MVT)

The Mobile Verification Toolkit (MVT), an open-source forensic tool created by security researcher Claudio Guarnieri and Amnesty International's Security Lab, is one of the most important advancements in Pegasus detection.

MVT is a democratization of advanced forensic skills that were previously exclusive to intelligence services and law enforcement. Both iOS and Android devices may be analyzed by the toolkit, which searches for signs of contamination that point to Pegasus or other sophisticated spyware infections.

The toolkit works by extracting and analyzing multiple types of data from mobile devices:

System Logs: MVT examines detailed system logs that record every significant event on the device, looking for patterns that suggest unauthorized access or unusual system behavior.

App Activity: The toolkit analyzes application usage patterns, looking for apps that are running when they shouldn't be or consuming resources in ways that suggest they've been compromised.

Network Connections: MVT maps out all network connections made by the device, identifying suspicious destinations or communication patterns that suggest spyware activity.

File Integrity: The toolkit compares system files against known good versions, looking for modifications that suggest the installation of malicious software.

What makes MVT particularly valuable is its accessibility. The toolkit is free, open-source, and can be used by journalists, activists, and civil society organizations around the world. This has dramatically expanded the ability of potential surveillance targets to check their own devices for compromise.

The Cat-and-Mouse Game: Evolution of Detection Techniques

The development of Pegasus detection techniques has been shaped by an ongoing arms race between forensic investigators and NSO Group's engineers. Each time researchers develop new detection methods, NSO adapts their software to evade those methods, forcing investigators to develop even more sophisticated techniques.

Early Detection Methods: The first successful Pegasus detections relied on relatively simple techniques—looking for suspicious network traffic or unusual system behavior. These methods were effective against early versions of Pegasus but became less useful as the software evolved.

Advanced Behavioral Analysis: As Pegasus became more sophisticated, researchers shifted toward behavioral analysis—looking at patterns of device behavior rather than specific technical indicators. This approach was more resilient to changes in the spyware's technical implementation.

Machine Learning Applications: More recently, researchers have begun experimenting with machine learning approaches to Pegasus detection, training algorithms to identify subtle patterns that might indicate spyware infection even when traditional indicators are absent.

Hardware-Level Analysis: The most advanced detection techniques now operate at the hardware level, examining the interaction between software and device hardware to identify anomalies that suggest unauthorized access.

The Challenges of iOS Forensics

Detecting Pegasus on iPhones presents particular challenges due to Apple's security architecture and restrictions on device access. While these restrictions generally make iPhones more secure, they also make forensic analysis more difficult.

Closed System Architecture: Unlike Android devices, which can be more easily modified for forensic analysis, iPhones operate as closed systems with limited access to system internals.

Encrypted Storage: Apple's encryption of device storage makes it difficult to extract and analyze certain types of data that might contain evidence of spyware infection.

Limited Log Access: iOS provides limited access to system logs compared to other operating systems, making it harder to reconstruct device activity timelines.

Backup Analysis: Many iOS forensic techniques rely on analyzing device backups rather than the devices themselves. However, Pegasus is designed to avoid leaving traces in backup data, limiting the effectiveness of these approaches.

Despite these challenges, researchers have developed innovative techniques for iOS forensics, often using Apple's own development tools and legitimate system features to gain insight into device behavior.

Network Infrastructure Analysis

One of the most effective approaches to detecting Pegasus operations involves analyzing the network infrastructure used to operate the spyware. NSO Group operates a global network of servers and

communication systems to support their surveillance operations, and this infrastructure can be mapped and monitored to identify ongoing surveillance activities.

Command and Control Servers: Pegasus-infected devices must communicate with servers controlled by NSO Group. By identifying these servers and monitoring their activity, researchers can detect ongoing surveillance operations and potentially identify new targets.

Domain Name Analysis: NSO Group uses sophisticated techniques to hide their server infrastructure, including the use of legitimate-seeming domain names and cloud hosting services. Researchers have learned to identify patterns in domain registration and DNS configuration that suggest NSO operations.

Traffic Pattern Analysis: The network traffic generated by Pegasus has distinctive characteristics that can be identified through careful analysis. While individual communications may be encrypted and disguised, the overall pattern of communications often reveals the presence of spyware.

Geographic Mapping: By analyzing the geographic distribution of NSO's server infrastructure, researchers can often identify which countries are likely NSO clients and track the expansion of surveillance operations.

Protecting Against Detection Evasion

As detection techniques have improved, NSO Group has invested heavily in making Pegasus more difficult to detect. The company's engineers have developed sophisticated anti-forensic techniques designed to thwart investigation efforts.

Self-Destruction Mechanisms: Modern versions of Pegasus include self-destruction capabilities that can remotely remove all traces of the spyware from infected devices if detection seems likely.

Forensic-Aware Operation: Pegasus is designed to detect when forensic analysis tools are being used and can modify its behavior to avoid detection.

False Flag Operations: NSO has developed techniques for making Pegasus infections appear to come from other sources, potentially misdirecting forensic investigations.

Legitimate Process Mimicry: Advanced Pegasus infections can disguise themselves as legitimate system processes, making them extremely difficult to distinguish from normal system operation.

The Democratization of Digital Forensics

Perhaps the most significant development in Pegasus detection has been the democratization of sophisticated forensic capabilities. Tools and techniques that were once available only to intelligence agencies and law enforcement are now accessible to civil society organizations, journalists, and individual activists.

Open Source Tools: The development of tools like MVT has made advanced forensic capabilities available to anyone with the technical skills to use them.

Training and Capacity Building: Organizations like Amnesty International and Access Now have developed training programs to teach digital forensics skills to journalists, activists, and civil society organizations around the world.

Collaborative Networks: The global community of digital rights researchers has developed collaborative networks for sharing information about new threats and detection techniques.

Institutional Support: Major technology companies, foundations, and academic institutions have begun providing funding and support for digital forensics research and capacity building.

This democratization has fundamentally changed the balance of power in digital surveillance. While governments and surveillance companies still have significant advantages, civil society now has access to tools and techniques that can expose and document surveillance activities.

Limitations and Future Challenges

Despite significant advances in detection techniques, major challenges remain in the fight against sophisticated spyware like Pegasus.

Resource Requirements: Effective forensic analysis requires significant technical expertise and computing resources that may not be available to all potential targets.

Time Sensitivity: Many detection techniques are most effective immediately after infection. Spyware that has been operating for months or years may be much more difficult to detect.

Zero-Day Exploits: The most advanced spyware operations use previously unknown vulnerabilities that may be undetectable until security researchers discover the exploits being used.

Attribution Challenges: Even when spyware infections are detected, determining who was responsible for the surveillance can be extremely difficult.

Legal and Technical Barriers: Forensic investigation often requires access to technical resources and legal authorities that may not be available in all jurisdictions.

12. 2024-2025: The Empire Strikes Back (Or Does It?)

The Wounded Giant Stumbles

As 2024 dawned, NSO Group looked nothing like the confident surveillance technology leader it had been just three years earlier. The company that once boasted about helping governments fight terrorism and serious crime was now fighting for its very survival, hemorrhaging clients, facing billion-dollar lawsuits, and struggling to maintain basic business operations.

The United States' November 2021 designation to the Entity List had turned out to be even more disastrous than anticipated. Because NSO depends on American technical infrastructure, including as software development tools and cloud computing services, the blacklisting essentially rendered many of the company's basic functions inoperable.

A corporation in distress was depicted in internal documents that surfaced from numerous court proceedings. Many of NSO's best skilled engineers and researchers left the company to work for other companies or launch their own businesses, resulting in a more than 40% reduction in staff. The company's once-prestigious reputation in the cybersecurity sector had been badly tarnished, and several important executives had left. Financial pressures were mounting from multiple directions. The company was reportedly struggling to meet payroll obligations and had been forced to sell off assets to maintain liquidity. Insurance companies had canceled NSO's coverage, making it difficult for the company to operate normally or attract new business partners.

The Legal Avalanche Continues

The year 2024 brought no relief from NSO's legal troubles. If anything, the company's position became even more precarious as courts rejected key defense strategies and plaintiff companies pressed their advantages.

A federal judge in California gave NSO a major blow in March 2024 when he granted WhatsApp partial summary judgment in their protracted legal battle. The decision opened the door for potentially enormous damage claims once it was determined that NSO had in fact broken the Computer Fraud and Abuse Act by using WhatsApp's systems to install Pegasus spyware.

Similar developments in Apple's lawsuit followed WhatsApp's triumph. Apple was advancing with discovery procedures that were exposing humiliating information about NSO's internal operations and commercial practices by the middle of 2024, having successfully repelled NSO's attempts to have the lawsuit dismissed. The rise of new lawsuits from individual surveillance victims was possibly the most detrimental. Journalists, activists, and leaders of civil society started bringing their own lawsuits against NSOs in 2024 in an effort to recover damages for the surveillance they had endured. Because they gave NSO's operations people faces and made it harder for the organization to defend its monitoring practices, these individual cases were especially potent.

The whole amount of legal exposure that NSO had to deal with was astounding. According to conservative estimates, if all of the ongoing cases were successful, the company may be liable for damages reaching \$2 billion. This legal risk was an existential threat to a business that was already having financial difficulties.

Attempts at Reinvention

Facing this crisis, NSO Group attempted various strategies to rehabilitate its business and reputation. The company hired new public relations firms, brought in consultants to review its business practices, and even claimed to be developing new oversight mechanisms to prevent future abuses.

To address criticism of its business practices, NSO announced a "comprehensive reform program" at the beginning of 2024. According to reports, the initiative featured improved supervision of surveillance activities, updated client screening protocols, and frequent audits by impartial human rights groups.

Government representatives, cybersecurity specialists, and human rights organizations, however, were generally skeptical of these reform initiatives. NSO's core business strategy, which involves providing advanced surveillance capabilities to governments with a track record of violating human rights, was criticized for being incompatible with substantive human rights protections.

The business also made an effort to shift its focus to other markets and uses for its technology. According to talks with NSO executives, the organization was looking into applications in sectors that might not be as contentious as government monitoring, such as business security and anti-fraud services.

Significant obstacles stood in the way of these diversification initiatives. Many prospective corporate clients were hesitant to be connected with NSO because of the company's severely damaged reputation. Furthermore, Pegasus's technical features that make it useful for government monitoring could not be transferable to commercial security uses.

The Competitor Landscape

NSO's troubles created opportunities for other companies in the surveillance technology market. Several competitors moved aggressively to capture market share from NSO's struggling operations, while new companies emerged to serve the continuing demand for government surveillance capabilities.

However, the Pegasus discoveries also led to heightened scrutiny of NSO's rivals. Several nations' regulatory bodies started looking more closely at other surveillance technology firms, and a number of them faced export limitations like to those placed on NSO.

The entire surveillance technology sector was stifled by the heightened scrutiny. Businesses that had previously been largely unknown became the focus of civil society movements and investigative reporting. To avoid the kind of scrutiny that had proven so detrimental to NSO, a number of businesses quietly reduced their operations or altered their business plans.

Government Client Relations

For NSO in 2024–2025, preserving ties with government clients was one of the biggest obstacles. Many nations found it politically challenging to maintain their ties with NSO as a result of the detrimental publicity around the corporation and diplomatic pressure from the US and EU.

During this time, a number of reported clients discreetly canceled or ended their agreements with NSO. Although the specifics of these contract modifications were largely kept under wraps, industry watchers saw sharp drops in NSO's stated income and operational activity, which implied a sizable clientele loss.

NSO experienced a vicious cycle as a result of the client losses. It became more challenging to fund the R&D required to preserve the technological advantage that had made Pegasus so successful as the company's income decreased. This accelerated the downward spiral by making NSO's offerings less appealing to prospective customers.

In order to create plausible deniability, certain governments that persisted in their collaboration with NSO did so through progressively intricate agreements. These agreements frequently used third-party contractors, shell corporations, or other techniques that made it challenging to link particular nations to monitoring operations.

Technical Capabilities Under Pressure

The combination of financial pressures, legal challenges, and personnel departures began to affect NSO's core technical capabilities. The company's ability to develop new exploits and maintain existing ones was compromised by the loss of key researchers and engineers.

Security researchers noted that NSO's exploit development appeared to slow significantly during 2024. The company seemed to be relying more heavily on older exploits and was slower to respond to security updates from Apple, Google, and other technology companies.

This decline in technical capabilities was particularly significant because the surveillance technology industry is driven by constant innovation. As smartphone manufacturers improve their security features, surveillance companies must continuously develop new techniques to bypass those protections. NSO's reduced capacity for innovation threatened to make their products obsolete.

The technical challenges were compounded by increased security research focused on detecting and preventing Pegasus infections. Technology companies, academic researchers, and civil society organizations had invested heavily in developing countermeasures to NSO's surveillance tools, making it increasingly difficult for the company to operate effectively.

International Diplomatic Pressure

Throughout 2024 and 2025, NSO was under increasing diplomatic pressure. European governments imposed their own limitations on the export of surveillance technology, and the Biden administration stuck to its tough stance against commercial spying firms.

Most importantly, there was growing pressure on the Israeli government to act against NSO. Israeli authorities had at first defended the business as a significant exporter of technology, but it became more challenging to uphold this stance in the face of growing diplomatic pressure and proof of human rights violations.

Reports surfaced in late 2024 indicating that the Israeli government was thinking about imposing more limitations on NSO's export operations. Although the specifics were kept under wraps, industry watchers conjectured that these limitations may effectively bar NSO from providing services to a large number of its surviving clients.

Potential new clients were also subject to diplomatic pressure. The United States, European Union, and other democratic governments that had taken strong stances against commercial surveillance technology threatened to impose diplomatic sanctions on nations thinking about using NSO's services.

The Broader Industry Impact

The issues facing NSO have a big impact on the commercial surveillance sector as a whole. The company's challenges served as a reminder to other businesses about the dangers of doing business in this sector without paying enough attention to legal compliance and human rights.

As investigative journalists and civil society organizations broadened their scope beyond NSOs, several additional surveillance technology businesses found themselves under further investigation. The actions of other businesses were exposed as a result of this increased scrutiny, which also fueled a growing push for stricter industry-wide regulation.

The increased attention also attracted new investment and interest in developing countermeasures to commercial surveillance tools. Technology companies, academic researchers, and civil society organizations were all investing resources in developing better detection methods, stronger security measures, and more effective legal strategies for challenging surveillance technology companies.

13. Crystal Ball: The Future of Surveillance and Freedom

The Technological Arms Race Continues

Looking toward the future, the battle between surveillance technologies and privacy protections shows no signs of slowing down. In fact, emerging technologies promise to make this conflict even more complex and consequential than it is today.

Perhaps the biggest game-changer that lies ahead is artificial intelligence. Pegasus and other contemporary surveillance programs need human operators to process the enormous volumes of data they gather. In order to automatically detect "interesting" communications, flag questionable activity, and even forecast future activities by surveillance targets, future surveillance systems will depend more and more on artificial intelligence.

The scope and efficiency of surveillance operations will be significantly increased by this automation. AI systems will be able to process communications from thousands or millions of people at once, searching for patterns and anomalies that might indicate criminal activity, political dissent, or other behaviors of interest to authorities. This will eliminate the need for governments to employ teams of analysts to monitor surveillance targets.

The ramifications are astounding. Even highly advanced surveillance programs like Pegasus are constrained by the manpower required to evaluate and respond to intelligence. These restrictions might be removed by AI-powered surveillance, opening the door to the potential for genuinely thorough population monitoring.

Another emerging technology that has the potential to completely transform surveillance capabilities is quantum computing. Quantum computing is still in its infancy, but it has the potential to crack many of the encryption schemes used to safeguard digital communications today. Quantum computers have the potential to completely replace existing privacy safeguards if they are developed for use in surveillance.

However, the same quantum technologies that threaten current encryption also promise new forms of quantum-resistant encryption that could provide even stronger privacy protections. This creates a technological race where surveillance capabilities and privacy protections are both advancing rapidly, with uncertain implications for the balance between them.

The Democratization of Surveillance

One of the most concerning trends for the future is the potential democratization of sophisticated surveillance capabilities. While tools like Pegasus have traditionally been available only to governments with significant resources, technological advances and market competition are making surveillance capabilities more accessible to smaller actors.

Cloud computing and software-as-a-service models are making it possible for surveillance technology companies to offer their capabilities to clients who couldn't previously afford comprehensive surveillance programs. This could lead to surveillance capabilities spreading to local law enforcement agencies, private corporations, and even individuals with sufficient resources.

In simpler forms, spying is already becoming more accessible. Commercial technologies are frequently used by private investigators to monitor people's communications, track their internet habits, and even get unauthorized access to their devices. The distinction between private and governmental surveillance may grow more hazy as these instruments advance in sophistication and accessibility.

The ramifications of this development for civil liberties and privacy are substantial. Private monitoring frequently functions in legal limbo with little accountability, but government surveillance is, at least in theory, subject to constitutional restrictions and supervision procedures. Adding private actors to the scope of surveillance could lead to new types of misuse that are even harder to identify and stop than government monitoring.

The Corporate Accountability Revolution

The Pegasus case has accelerated a broader shift toward holding technology companies accountable for the societal impact of their products and services. This trend extends far beyond surveillance technology to include social media platforms, artificial intelligence systems, and other technologies that can have significant social and political consequences.

Future surveillance technology companies will likely face much more stringent oversight and accountability mechanisms than NSO Group encountered during its early years. This could include:

Mandatory Human Rights Impact Assessments: Companies may be required to conduct detailed assessments of how their products could affect human rights before bringing them to market.

Enhanced Due Diligence Requirements: Surveillance technology companies may face legal requirements to thoroughly investigate potential clients and monitor how their products are used after sale.

Transparency Reporting: Companies may be required to publish regular reports about their clients, the purposes for which their products are used, and any human rights concerns that arise.

Independent Oversight: Industry regulation may include requirements for independent monitoring of surveillance technology companies by human rights organizations or other external bodies.

The Geopolitical Reshuffling

The Pegasus affair has also contributed to a broader geopolitical reshuffling around surveillance and cybersecurity technologies. Countries are increasingly viewing surveillance capabilities as strategic assets that must be protected and controlled, rather than simply commercial products that can be freely traded.

National Champion Strategies: Many countries are investing heavily in developing domestic surveillance technology capabilities rather than relying on foreign vendors. This "national champion" approach is designed

to ensure that countries maintain control over their surveillance capabilities and are not subject to foreign restrictions or sanctions.

Alliance Building: Democratic countries are increasingly coordinating their approaches to surveillance technology regulation, creating informal alliances designed to prevent authoritarian countries from accessing advanced surveillance capabilities.

Technology Sovereignty: The concept of "technology sovereignty"—the idea that countries should control the key technologies that affect their security and governance—is becoming increasingly important in discussions about surveillance technology.

These geopolitical trends suggest that the surveillance technology market will become increasingly fragmented along political and ideological lines. Democratic countries may develop separate surveillance technology ecosystems from authoritarian ones, with limited interaction between them.

The Next Generation of Threats

Even as NSO Group struggles with its current challenges, new surveillance threats are already emerging that could make Pegasus look primitive by comparison. These next-generation threats combine surveillance capabilities with other emerging technologies in ways that could fundamentally reshape the surveillance landscape.

Internet of Things (IoT) Surveillance: The proliferation of connected devices—smart homes, connected cars, wearable devices—creates new opportunities for surveillance that extend far beyond smartphones. Future surveillance tools may be able to monitor targets through any connected device in their environment.

Biometric Surveillance: Advances in facial recognition, voice analysis, and other biometric technologies are making it possible to identify and track individuals through public surveillance cameras, voice recordings, and other biometric data sources.

Social Media Intelligence: Sophisticated analysis of social media activities, combined with AI and machine learning, is making it possible to build detailed profiles of individuals based on their online activities and social connections.

Vehicular Surveillance: Connected cars are becoming mobile surveillance platforms capable of tracking location, monitoring occupant conversations, and even analyzing driving behavior for insights into driver psychology and activities.

These emerging surveillance capabilities are being developed by companies around the world, many of which are learning from NSO's mistakes and attempting to avoid the regulatory and legal challenges that have plagued Pegasus.

Privacy Technology Counter-Revolution

The surveillance technology advances are being matched by equally impressive advances in privacy-protecting technologies. The Pegasus revelations have accelerated investment in privacy technology, leading to new tools and techniques for protecting digital communications and activities.

Advanced Encryption: New encryption protocols are being developed that are designed to resist even quantum computer attacks, potentially providing long-term protection for digital communications.

Anonymous Communication Systems: Next-generation anonymous communication tools are making it possible to communicate and organize online without revealing identity or location information.

Decentralized Technologies: Blockchain and other decentralized technologies are enabling new forms of communication and organization that are more resistant to centralized surveillance and control.

Privacy-by-Design: Technology companies are increasingly implementing "privacy-by-design" approaches that build strong privacy protections directly into their products rather than adding them as afterthoughts.

User Education: There is growing investment in educating users about digital privacy and security, helping them understand surveillance risks and take appropriate protective measures.

The Legal Framework Evolution

The legal frameworks governing surveillance technology are evolving rapidly in response to the challenges revealed by the Pegasus case. This evolution is happening at multiple levels—domestic, international, and through private legal actions.

Constitutional Protections: Courts in multiple countries are grappling with how traditional constitutional privacy protections apply to modern surveillance technologies. These cases are establishing new precedents that will shape surveillance law for decades to come.

International Human Rights Law: International human rights organizations are developing new interpretations of existing human rights treaties that specifically address digital surveillance technologies. These interpretations could become the basis for international legal action against surveillance technology companies and their government clients.

Corporate Liability: The successful lawsuits against NSO Group are establishing new precedents for holding surveillance technology companies legally accountable for human rights abuses. These precedents will likely be applied to other companies and could fundamentally change the legal environment for the surveillance technology industry.

Regulatory Innovation: Governments are experimenting with new regulatory approaches specifically designed to address the challenges posed by surveillance technology. These approaches range from export controls to licensing requirements to mandatory human rights assessments.

14. Conclusions and Recommendations: Charting a Path Forward

The Pegasus Legacy: Lessons Learned

The Pegasus affair represents more than just the story of one company and its controversial product. It is a defining moment in the evolution of digital rights, government surveillance, and corporate accountability in the 21st century. The lessons learned from this case will shape how society approaches these challenges for years to come.

Lesson 1: Technology is Never Neutral The Pegasus case definitively disproves the argument that technology is morally neutral and that companies cannot be held responsible for how their products are used. NSO Group's active participation in surveillance operations and their business model based on providing "turnkey" surveillance services demonstrated that technology companies can and should be held accountable for the foreseeable consequences of their products.

Lesson 2: Legal Frameworks Must Evolve Traditional legal frameworks developed for a pre-digital world are inadequate for addressing the challenges posed by sophisticated surveillance technologies. The success of WhatsApp and Apple in challenging NSO Group through civil litigation demonstrates that new legal approaches can be effective, but systematic legal reform is needed to address the broader challenges.

Lesson 3: International Cooperation is Essential The global nature of surveillance technology companies and their markets makes effective regulation impossible without international cooperation. The coordinated response to NSO Group by the United States, European Union, and other democratic countries demonstrates what can be achieved through international cooperation, but more systematic approaches are needed.

Lesson 4: Civil Society Plays a Crucial Role The investigation and exposure of NSO Group's activities was largely driven by civil society organizations, independent journalists, and security researchers rather than by government agencies. This demonstrates the essential role that civil society plays in holding surveillance technology companies accountable.

Lesson 5: Technical Countermeasures are Possible The development of tools and techniques for detecting Pegasus infections shows that technical countermeasures to surveillance technology are possible, even against sophisticated adversaries. However, developing and deploying such countermeasures requires significant resources and expertise.

Recommendations for Policymakers

The Pegasus case provides clear guidance for policymakers seeking to address the challenges posed by commercial surveillance technology while preserving legitimate security capabilities.

Strengthen Export Controls: Governments should implement comprehensive export control systems specifically designed to address surveillance technology. These controls should include both technical specifications and end-use restrictions that prevent surveillance technology from reaching clients who are likely to misuse it.

Enhance Legal Remedies: Legal systems should provide clear remedies for surveillance victims, including both criminal penalties for unauthorized surveillance and civil remedies that allow victims to seek compensation for damages.

Improve Oversight Mechanisms: Government use of surveillance technology should be subject to robust oversight mechanisms that include judicial review, legislative oversight, and independent monitoring by civil society organizations.

Invest in Detection and Prevention: Governments should invest in developing and deploying technologies and techniques for detecting unauthorized surveillance activities. This includes supporting research into surveillance detection methods and providing resources for potential surveillance targets to protect themselves.

Foster International Cooperation: The global nature of surveillance technology requires international cooperation to be effectively regulated. Democratic governments should work together to develop common standards and enforcement mechanisms for surveillance technology oversight.

Recommendations for Technology Companies

Technology companies play a crucial role in the surveillance ecosystem, both as potential targets of surveillance tools and as developers of the platforms and services that surveillance tools exploit. The Pegasus case provides clear guidance for how companies can better protect their users and resist surveillance overreach.

Implement Security by Design: Companies should implement security measures specifically designed to resist sophisticated surveillance tools. This includes regular security audits, penetration testing by independent researchers, and rapid response procedures for addressing newly discovered vulnerabilities.

Provide User Education: Companies should invest in educating their users about surveillance risks and providing tools and guidance for protecting themselves. This includes clear documentation about security features, regular security updates, and user-friendly privacy controls.

Support Detection Efforts: Companies should support civil society organizations and researchers working to detect and document surveillance activities. This can include providing technical resources, sharing threat intelligence, and supporting research into surveillance detection methods.

Legal Resistance: Companies should be prepared to use legal measures to resist surveillance tools that exploit their platforms. The success of WhatsApp and Apple in challenging NSO Group demonstrates that such legal resistance can be effective.

Industry Cooperation: Technology companies should work together to share information about surveillance threats and coordinate responses to surveillance technology companies. Industry cooperation can amplify the impact of individual company efforts and make it more difficult for surveillance vendors to operate.

Recommendations for Civil Society

Civil society organizations, journalists, and digital rights advocates have played a crucial role in exposing and challenging NSO Group's activities. The Pegasus case provides guidance for how these organizations can continue to effectively monitor and challenge surveillance technology companies.

Invest in Technical Capabilities: Civil society organizations should invest in developing technical capabilities for detecting and documenting surveillance activities. This includes training staff in digital forensics, developing relationships with technical experts, and acquiring the tools and equipment needed for surveillance detection.

Build International Networks: The global nature of surveillance technology requires international cooperation among civil society organizations. Groups should work together to share information, coordinate investigations, and provide mutual support for surveillance detection and documentation efforts.

Engage with Legal Systems: Civil society organizations should work to strengthen legal frameworks for addressing surveillance technology abuses. This includes supporting victims in bringing legal cases, advocating for stronger laws and regulations, and providing expert testimony in legal proceedings.

Public Education and Awareness: Organizations should invest in public education about surveillance risks and protection measures. This includes developing user-friendly resources for detecting surveillance, providing training for at-risk individuals, and raising public awareness about surveillance technology issues.

Support Victim Services: Organizations should develop services to support surveillance victims, including technical assistance, legal support, and psychological counseling for individuals who have experienced surveillance.

Recommendations for Individuals

Individual users—whether they are potential surveillance targets or simply concerned citizens—can take steps to protect themselves and contribute to broader efforts to address surveillance technology challenges.

Digital Security Practices: Individuals should implement strong digital security practices, including using encrypted communication tools, keeping software updated, and being cautious about suspicious communications. While these measures may not prevent sophisticated surveillance tools like Pegasus, they can significantly reduce vulnerability to less sophisticated threats.

Awareness and Vigilance: Individuals should stay informed about surveillance threats and be aware of the signs that might indicate surveillance activity. This includes unusual device behavior, unexpected battery drain, or suspicious communications.

Support Accountability Efforts: Individuals can support organizations working to hold surveillance technology companies accountable by providing financial support, sharing information about potential surveillance activities, and advocating for stronger legal and regulatory protections.

Political Engagement: Citizens should engage with political processes to ensure that their governments implement appropriate oversight of surveillance technology. This includes supporting candidates who prioritize digital rights and privacy protections, advocating for stronger laws and regulations, and holding elected officials accountable for surveillance technology policies.

The Long-Term Vision

Looking beyond the immediate challenges posed by companies like NSO Group, the Pegasus case offers an opportunity to reimagine how society approaches the fundamental questions of privacy, security, and government power in the digital age.

Privacy as a Human Right: The case reinforces the importance of treating privacy as a fundamental human right rather than a luxury that can be sacrificed for security or convenience. This means implementing legal and technical protections that treat privacy as a default rather than an option.

Transparent Governance: The case demonstrates the importance of transparent governance of surveillance technologies. Democratic oversight of surveillance capabilities is essential for ensuring that these powerful tools are used appropriately and do not undermine the democratic values they are supposed to protect.

Technical Innovation for Rights: The case shows the potential for technical innovation to serve human rights and civil liberties rather than undermining them. Investment in privacy-protecting technologies, surveillance detection tools, and digital rights infrastructure can help level the playing field between surveillance capabilities and privacy protections.

Global Cooperation: The international nature of surveillance technology challenges requires global cooperation to address effectively. This cooperation should include not just democratic governments but also civil society organizations, technology companies, and international institutions.

Final Reflections: The Stakes We Face

The Pegasus affair is ultimately about more than surveillance technology—it's about what kind of society we want to live in and what kind of future we want to create for our children. The choices we make today about

how to regulate surveillance technology, how to balance security and privacy, and how to hold powerful companies accountable will shape the digital landscape for generations to come.

The Pegasus narrative serves as a warning about what can occur when advanced surveillance technologies are created and implemented without giving enough thought to how they may affect human rights. However, it is also a story of hope, showing that civil society can successfully oppose strong corporate interests, that accountability is achievable, and that technological innovation can support democratic principles and human rights.

The conflict over Pegasus is still ongoing. NSO Group might or might not make it through its current predicament. Without a doubt, other businesses will try to close any market gaps caused by NSO's issues. Pegasus might appear outdated in compared to the new surveillance technologies that will be created.

However, the Pegasus case has set significant precedents and tenets that will direct society's approach to these upcoming issues. It has demonstrated that businesses using monitoring technologies can face legal repercussions for violating human rights. It has shown that technology firms and civil society groups may cooperate to thwart overreaching surveillance. Additionally, it has demonstrated that even in the murky realm of commercial spying, accountability and openness are achievable.

The future of digital rights will be shaped by how well we apply these lessons to the challenges that lie ahead. The stakes could not be higher—the decisions we make about surveillance technology in the coming years will determine whether we live in a world of comprehensive monitoring and control or one where privacy, freedom, and human dignity are protected and preserved.

A Call to Action

The Pegasus case is not just a story to be read and forgotten—it's a call to action for anyone who cares about privacy, human rights, and democratic governance in the digital age. The sophisticated surveillance capabilities revealed by this case will only become more widespread and more powerful in the years to come. How we respond to these challenges today will determine what kind of digital future we create for ourselves and future generations.

In this response, each stakeholder has a part to play. Governments need to put in place more robust supervision and accountability systems. Technology firms must put user security and privacy ahead of government requests for access to surveillance data. The vital research, campaigning, and education that civil society organizations do must go on. Additionally, people need to be aware, take precautions, and participate in the political processes that will shape the laws and regulations governing surveillance technology.

The Pegasus case has made us aware of the threats we face and the resources available to us to combat them. We must now decide if we will possess the knowledge and bravery to make good use of those instruments.

Appendices and Additional Resources

Appendix A: Technical Specifications Summary

Pegasus Infection Vectors:

- Zero-click exploits via WhatsApp voice calls
- iMessage zero-click attacks (KISMET, FORCEDENTRY)
- Network injection attacks
- Malicious PDF processing
- Social engineering with malicious links

Device Capabilities:

- iOS devices (iPhone, iPad) running all versions through iOS 14
- Android devices across all major manufacturers
- Cross-platform persistence and stealth mechanisms
- Remote activation of cameras and microphones
- Complete file system access and data exfiltration

Detection Indicators:

- Unusual network traffic patterns
- Suspicious system process activity
- Modified system files and permissions
- Anomalous battery usage and device behavior
- Presence of NSO Group infrastructure communication

Appendix B: Timeline of Major Events

2010: NSO Group founded in Israel by former Unit 8200 personnel **2014:** First acquisition by Francisco Partners (\$130 million) **2016:** First public exposure through Ahmed Mansoor case **2019:** WhatsApp vulnerability exploitation discovered **2019:** WhatsApp files landmark lawsuit against NSO Group **2021:** Pegasus Project revelations expose global surveillance **2021:** Apple files \$1 billion lawsuit against NSO Group **2021:** United States adds NSO Group to Entity List **2024:** Major legal victories for WhatsApp and Apple **2025:** NSO Group continues to face existential business challenges

Appendix C: Global Impact Statistics

Confirmed Surveillance Targets:

- 50,000+ phone numbers on target lists
- 1,400+ confirmed WhatsApp infections
- 45+ countries involved in surveillance operations
- 180+ journalists confirmed as targets
- 85+ human rights activists under surveillance

Financial Impact:

- \$2+ billion in potential legal damages facing NSO Group
- \$80+ million spent by Mexico on Pegasus contracts
- 40%+ reduction in NSO Group workforce (2021-2024)
- Multiple client contract suspensions and terminations

Regulatory Response:

- Entity List designation by United States
- EU surveillance technology export restrictions
- Multiple country-specific regulatory enhancements
- Ongoing legislative initiatives in 15+ countries

Appendix D: Key Technical Resources

Detection Tools:

- Mobile Verification Toolkit (MVT) - Open-source Pegasus detection
- iMazing Security Analysis - iOS forensic analysis
- MSAB Mobile Forensics - Professional mobile device analysis
- Cellebrite Digital Intelligence - Law enforcement forensic tools

Protection Measures:

- Regular iOS and Android security updates
- Signal for encrypted messaging
- Tor Browser for anonymous web browsing
- VPN services for network traffic protection
- Regular device reboots and factory resets for high-risk individuals

Appendix E: Glossary of Terms

Zero-Day Exploit: A previously unknown vulnerability that has not been patched by the software vendor

Zero-Click Attack: A cyber attack that requires no user interaction to successfully compromise a device

Command and Control (C&C): Servers used to control malware and extract data from infected devices

Forensic Artifacts: Digital traces left behind by malware that can be detected through analysis

Entity List: U.S. government list of organizations restricted from accessing American technology

Spear Phishing: Targeted phishing attacks directed at specific individuals or organizations

Advanced Persistent Threat (APT): Sophisticated, long-term cyber attacks typically associated with nation-state actors